

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.**
HUGH ROSE, Purchased 1-30-24

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
POLICE OFFICER ARGENIS PAULINO
(shield # 27039),**

SUMMONS

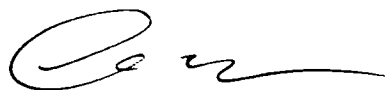
Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 30, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****HUGH ROSE****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER ARGENIS PAULINO
(shield # 27039),****Defendants.**

Plaintiff HUGH ROSE, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff HUGH ROSE was a resident of the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER ARGENIS PAULINO (shield # 27039)("P.O. PAULINO") was and is a police officer employed by Defendants.

BACKGROUND

5. On September 27, 2021, at approximately 9:00 p.m., in the vicinity of East 238th Street and Matilda Avenue in Bronx County, State of New York, without just cause or provocation, P.O. PAULINO , an officer with POLICE, approached Plaintiff, searched Plaintiff, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Weapon in the Second Degree and related charges.

6. On or about September 28, 2021, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff commenced. Plaintiff was released from custody on or about September 30, 2021.

7. Plaintiff had to defend against false charges until the matter was terminated in Plaintiff's favor on December 14, 2022.

PROCEDURAL POSTURE

8. On March 7, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

9. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust this claim.

10. A 50-H hearing has been held.

11. This action has been commenced within one year and ninety days after the cause

of action of Plaintiff accrued.

12. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

13. Paragraphs 1-12 are incorporated by reference as though fully set forth herein.

14. In arresting Plaintiff, the Defendants acted with malice.

15. POLICE lacked probable cause to arrest Plaintiff.

16. Defendant P.O. PAULINO drafted police paperwork knowing the information contained therein to be false, misleading and incomplete—including the claim that Plaintiff threw a bag containing a gun to the ground.

17. Defendants, including P.O. PAULINO, provided false and misleading information to the Bronx County Grand Jury and Bronx County District Attorney's Office regarding Plaintiff's conduct immediately prior to and during Plaintiff's arrest—including the false claim that Plaintiff threw a plastic bag containing a gun to the ground.

18. The matter was terminated in Plaintiff's favor when all charges were dismissed and sealed on December 14, 2022.

19. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: VIOLATION OF CIVIL RIGHTS

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

21. P.O. PAULINO was at all times relevant, duly appointed and acting as a police officer with POLICE.

22. At all times mentioned herein, P.O. PAULINO was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

23. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of the State of New York, and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

24. Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

25. On or about September 27, 2021, Defendants, including P.O. PAULINO, while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest or search warrant. Defendants, including P.O. PAULINO, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants did not possess probable cause to arrest Plaintiff.

26. Defendants' actions resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to Plaintiff's person;
- b. Freedom from battery to Plaintiff's person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

27. Defendants subjected Plaintiff to such deprivations, either in a malicious or

reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

28. Prior to September 27, 2021, CITY and POLICE developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom for POLICE to unlawfully pursue, seize and search citizens without legal justification. It was also the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the respondent officer, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

29. The direct and proximate result of Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, loss of liberty humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
January 30, 2024

Yours, etc.,



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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HUGH ROSE,

Plaintiff

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER ARGENIS PAULINO
(shield # 27039),**

Defendants
-----X

Index No.

Purchased: 1-30-24

Verification

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
January 30, 2024



ELLIOT S. KAY